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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YESENIA MOZ CASTRO,

Petitioner

VS.

JUAN CARLOS MENENDEZ FUNES,

Respondent

) Case Number: FDV-23-816763

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Yesenia Moz Castro (Mother) and Juan Carlos Menendez (Father) have one minor child together, Valerie (DOB 4/29/2021, age 5).
- 2) On 7/19/2023, this Court issued a 2-year Domestic Violence Restraining Order (DVRO) against Father protecting Mother. The Court awarded sole legal and sole physical custody of Valerie to Mother, with parenting time for Father every Friday from 6:30PM to 7:30PM, supervised by the maternal grandmother at her home or at another location approved by the grandmother. The Court ordered that the grandmother may cancel the visit if she is not available or if she believes Father is not sober.
- 3) On 2/11/2026, Father filed a request seeking parenting time every Saturday from 1PM to 5PM. He stated he did not see Valerie after 2024 because mother did not let him see her. He stated that Mother recently asked him if he would agree to have her current husband adopt Valerie.

- 1 4) Mother filed a response setting forth the history of domestic violence. She stated that Fater saw
2 Valerie only 3 or 4 times, spent only 10 to 30 minutes with her each time, had not seen her since
3 2/24/2024, and had not called Valerie on her birthday or other special occasions. Mother stated
4 she also assumed the parental role for Father's daughter Victoria for some time because Father
5 was unable to care for her, had multiple DVROs against him, and had lost custody of a son.
- 6 5) At a 4/30/2026 hearing on Father's request, the Court ordered that Father shall have visits every
7 Saturday from 6:30PM to 7:30PM, supervised by the maternal grandmother at the grandmother's
8 house or at another location approved by the grandmother. The Court set a review hearing for
9 7/14/2026.
- 10 6) Since the last hearing, the parties attended a readiness hearing on Mother's new request to
11 suspend visits. The parties are scheduled to attend mediation in that matter at 1:30PM on
12 7/15/2026 with Maya Ponce, and a hearing is scheduled for 8/4/2026.
- 13 7) On 7/9/2026, Father filed a declaration stating that the visits have been going well and that he
14 wishes to continue seeing Valerie. He attaches to his declaration a May 2026 certificate for
15 completion of a parenting class from Kids' Turn.

16 **B. Findings and Orders**

- 17 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
18 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
19 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
20 child is the United States.
- 21 2) The matter is hereby continued to the currently scheduled hearing date of **8/4/2026 at 9AM in**
22 **Department 404** to allow the parties to attend mediation. The parties shall attend mediation at
23 1:30PM on 7/15/2026 with Maya Ponce. If they are unable to reach an agreement at mediation,
24 they shall appear at the hearing on 8/4/2026. The parties are reminded to check the Court's
25 tentative ruling at 2PM on 8/3/2026 and to notify the Court and the other party if they object to
26 the tentative ruling and intend to appear at the 8/4/2026 hearing.
- 27 3) The Court will prepare the Findings and Order After Hearing.
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